

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mehdi Righi	Team: Squad #15	CCRB Case #: 202304344	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 05/08/2023 8:20 PM	Location of Incident: In the vicinity of East Houston Street and Crosby Street	18 Mo. SOL 11/8/2024	Precinct: 09
Date/Time CV Reported Mon, 05/15/2023 12:33 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/15/2023 12:33 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DC Timothy Beaudette	00000	903414	PBMS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Lerone Davis	22323	946899	MTS PCT
2. PO Frank Fiorenza	18475	957588	SRG 05
3. LT SA Maurice Walston	00000	935950	1ST D C
4. PO Marisa Gonzalez	16303	967899	013 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . DC Timothy Beaudette	Force: Deputy Chief Timothy Beaudette used physical force against § 87(2)(b)	A . Unable to Determine

Case Summary

On May 15, 2023, § 87(2)(b) filed this complaint with the CCRB via telephone.

On May 8, 2023, at approximately 8:20 PM, § 87(2)(b) left a vigil for the killing of Jordan Neely located outside the Broadway-Lafayette subway station on East Houston Street in Manhattan. § 87(2)(b) followed the vigil attendees as they marched south on Crosby Street. § 87(2)(b) bumped into Deputy Chief Timothy Beaudette of Patrol Borough Manhattan South. § 87(2)(b) told DC Beaudette to stop bumping her. § 87(2)(b) observed her friends up the street ahead of her and proceeded to walk to the left of DC Beaudette to catch up to one of her friends. DC Beaudette walked into § 87(2)(b)'s path and bumped her again. DC Beaudette asked § 87(2)(b) why she bumped him. § 87(2)(b) denied bumping him and said that he was the one that kept bumping her. DC Beaudette shoved § 87(2)(b) from her lower back (**Allegation A: Force – Physical Force, Unable to Determine**). § 87(2)(b) told DC Beaudette to stop “fucking pushing her” and walked back onto the sidewalk. They proceeded to bump into each other again. DC Beaudette pulled § 87(2)(b) into the street and arrested her. § 87(2)(b) was subsequently issued a summons for § 87(2)(b) (**BR 9**) at the 9th Precinct stationhouse.

The investigation obtained body-worn camera videos (**BR 5**) and TARU (**BR 6**) videos of the incident.

Findings and Recommendations

Allegation (A) Force: Deputy Chief Timothy Beaudette used physical force against § 87(2)(b)

§ 87(2)(b)'s telephone interview was conducted on May 22, 2023. DC Beaudette was interviewed remotely through MS Teams on March 7, 2024.

§ 87(2)(b) stated (**BR 4**) that an organizer for the Jordan Neely vigil gathered the attendees. The group then began to walk away from Broadway-Lafayette Street Subway station. The group remained on the sidewalk as they marched down a stone cobbled path. § 87(2)(b) could not recall what street she was on. The group increased their walking speed when they saw that the officers were following them from behind. § 87(2)(b) lost sight of her friends while walking in the street. DC Beaudette suddenly bumped § 87(2)(b) on her left side with the side of his arms. § 87(2)(b) did not know what DC Beaudette was doing before he bumped into her. § 87(2)(b) did not see where DC Beaudette came from. § 87(2)(b) told DC Beaudette to stop bumping her. § 87(2)(b) spotted her friends and proceeded to walk diagonally to the left of DC Beaudette to catch up to one of her friends. DC Beaudette walked into § 87(2)(b)'s path and bumped into her again. DC Beaudette asked § 87(2)(b) why she bumped him. § 87(2)(b) denied bumping him and said that he was the one that kept bumping her. DC Beaudette replied, “so what?” and shoved § 87(2)(b) from the sidewalk and into the street. DC Beaudette shoved § 87(2)(b) on her lower back. § 87(2)(b) was not sure if he used two hands. § 87(2)(b) told DC Beaudette to, “stop fucking pushing me” and walked back onto the sidewalk. They bumped into each other again. DC Beaudette walked onto the street and pulled § 87(2)(b) by her left arm into the street. § 87(2)(b) believed DC Beaudette pulled her into that street so that he had an excuse to arrest her. DC Beaudette tapped a nearby officer as he held § 87(2)(b) and informed her that she was under arrest. Four officers arrived to assist with the arrest as DC Beaudette handcuffed § 87(2)(b). DC Beaudette maintained a firm grip on § 87(2)(b)'s right arm after placing a handcuff on her left hand. § 87(2)(b) was not sure if another officer held her left arm.

because she was surrounded by multiple officers and was confused by what was happening. § 87(2)(b) did not recall what the officers that assisted DC Beaudette looked like. § 87(2)(b) asked DC Beaudette why he kept pushing her while he handcuffed her. DC Beaudette replied, “So what?” § 87(2)(b) asked what DC Beaudette meant by “So what?” DC Beaudette told § 87(2)(b) that she was on his sidewalk. Two officers approached DC Beaudette as he stood in the street with § 87(2)(b). The two officers explained that they would transport § 87(2)(b) for processing and asked DC Beaudette to take a walk. DC Beaudette walked away, and § 87(2)(b) was subsequently transported to the 9th precinct stationhouse. § 87(2)(b) sustained arm and back spasms as a result of DC Beaudette’s actions.

DC Beaudette stated (**BR 3**) that the police officers followed the vigil as it moved southbound on Crosby Street. A voice over the LRAD instructed the crowd to step onto the sidewalk and out of the street. DC Beaudette pursued the vigil on his own from the rear. He noted that there were dozens of SRG officers ahead of him. DC Beaudette walked down the sidewalk while engaging in a phone call. DC Beaudette finished the call and observed § 87(2)(b) on the sidewalk ahead of him. DC Beaudette previously saw her yelling at police officers that were walking in the street besides the vigil group. DC Beaudette heard her ask the officers, “Why are you in the street?” DC Beaudette explained that the officers in streets were instructing the vigil attendees to stay on the sidewalk while recording them. § 87(2)(b) continued to scream, “Why are you in the street? Why are you in the street?” DC Beaudette could not remember if these were her exact words. DC Beaudette noted that she did not do anything wrong at this point. DC Beaudette walked past her on the sidewalk without saying anything. § 87(2)(b) turned away from the street and approached DC Beaudette from the right side of his body. § 87(2)(b) began screaming at DC Beaudette. Her face was next to his ear and her body had brushed up against his as she screamed, “Fuck you!” The position of § 87(2)(b)’s body obstructed DC Beaudette from walking forward or doing his job. DC Beaudette proceeded to “guide” § 87(2)(b) away from him. DC Beaudette used the open palm of his right hand to move § 87(2)(b) by one of her shoulders. DC Beaudette claimed that physical contact was not violent. DC Beaudette “guided” § 87(2)(b) away from him because he needed a zone of safety. DC Beaudette denied using both hands to shove § 87(2)(b) from behind. § 87(2)(b) approached DC Beaudette again and resumed screaming at him. DC Beaudette did not recall how close she got when she approached him a second time. DC Beaudette did not recall what she specifically screamed at him but believed it involved cursing. DC Beaudette grabbed § 87(2)(b) by one of her arms and pulled her off the sidewalk and into the street. DC Beaudette did not recall which arm he pulled. § 87(2)(b) was subsequently placed under arrest. § 87(2)(b) did not resist arrest. § 87(2)(b) was arrested for § 87(2)(b) for screaming in his face and blocking his path after she brushed up against him. DC Beaudette could not recall if he handcuffed her on his own or with the help of other officers. DC Beaudette allowed another officer to transfer § 87(2)(b) to the stationhouse. DC Beaudette resumed following the vigil march.

The investigation obtained body worn camera videos and TARU videos from the legal bureau (**BR 5 and 6**). However, the footage captured shows the aftermath of § 87(2)(b)’s physical interaction with DC Beaudette.

Cellphone footage (**BR 7**) captured by an unnamed acquaintance of § 87(2)(b) shows multiple police officers walking on the street in the same direction. At 0:02, § 87(2)(b) says “fuck you” before DC Beaudette uses a single hand to push § 87(2)(b) from behind with his right arm. § 87(2)(b) turns around and tells DC Beaudette not to push her. At 0:04, § 87(2)(b) is positioned on the sidewalk. DC Beaudette, who is holding a megaphone in his left arm, uses his right arm to pull § 87(2)(b) by her shirt towards the street. DC Beaudette pulls § 87(2)(b) towards a uniformed male another white shirt officer in the street. The three officers proceed to

arrest § 87(2)(b) The video does not clearly show which officer is handcuffing § 87(2)(b) At 0:50, the individual recording video turns away from § 87(2)(b) and resumes walking down the sidewalk.

According to NYPD Patrol Guide Procedure 221-01 (**BR 10**), When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as *Unable to Determine*.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four CCRB complaints and has been named as a victim in 18 allegations (**BR 1**):
 - § 87(2)(b)
 -
- DC Beaudette has been a member of service for 30 years and has been a subject in four CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 29, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR 8**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad No.: 15

Investigator:	<u>Mehdi Righi</u>	<u>Inv. Mehdi Righi</u>	<u>04/08/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u>IM Simon Wang</u>	<u>04/08/24</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date